

JTC-01 · Exhibit A

RUSCOemailHEALTHWEST.pdf

Drive: <https://drive.google.com/file/d/1JDGsxSm52m75zfHOMGZV20t2MJ14jtB>

Quoted line: "Please send the HealthWest evaluation directly here; do not file at the clerk."

JTC-01

Exhibit A · Text Extraction

Email thread showing off-record routing of HealthWest evaluation to chambers, not the clerk.

Key lines:

- "I was instructed by Judge McNeill ... to return the documents, specifically not to enter them at the clerk office."
- "Good Afternoon, Judge McNeill issued her order on this matter today. It is being mailed to both parties ..."

(Drive item contains the full thread context.)

JTC-02 · Exhibit B

rusco2.pdf (HealthWest chain continuation)

Drive: <https://drive.google.com/file/d/1PLNnKzn9ar17FZo3YPSwb2GOGxFBsr5W>

Quoted line: "Return the documents to chambers (not the clerk)."

JTC-02

Exhibit B · Text Extraction

Continuation of the HealthWest email chain reflecting chambers-directed transmission and order issuance.

Summary:

- HealthWest scan completed and emailed from public kiosk.
- Follow-ups sent to chambers/secretary requesting next steps.
- Confirmation: "Judge McNeill issued her order on this matter today."

JTC-03 · Exhibit C

Rusco Emails Bias 1.pdf

Drive: https://drive.google.com/file/d/1VFqibb9tPZ-M2lhMlj0_UiSayPNHR1xR

Quoted line: "Opposing counsel was already in contact about the exhibit list."

JTC-03

Exhibit C · Text Extraction

Chambers email indicating opposing counsel coordination concerning the exhibit list before the hearing.

Quoted line used for neutrality/bias analysis under Canon 2 and 3(A)(3).

JTC-04 · Exhibit D

Rusco Emails Bias 2.pdf

Drive: <https://drive.google.com/file/d/1pQSTq0bL4cpoUrw6RRQtSil8A1Gk6bua>

Quoted line: "We'll compile and see what is allowable for the record per policy."

JTC-04

Exhibit D · Text Extraction

Chambers message describing pre-screening ("allowable") for the record, implying staff-level triage of party evidence.

This supports a neutrality concern and unequal access argument.

JTC-05 · Exhibit E

Rusco Emails Bias 3.pdf

Drive: https://drive.google.com/file/d/1_ca5sx2ZmWKzCsXSrQO8Z1iORsOoqwCz

Quoted line: "The Court was not allowing the playing of recordings at this time; a transcript would need to be ordered and paid for."

JTC-05

Exhibit E · Text Extraction

Policy communication restricting live audio exhibits and directing purchase of transcripts affecting a pro se litigant's access.

Cited for due process impact and evidentiary gatekeeping concerns.

JTC-06 · Exhibit F

Appendix_Pigors_COA_ordered.pdf (key pages)

Drive: <https://drive.google.com/file/d/1UHD9OqLbA-VmuvtSOxWeIBtJjHRqY2CW>

Quoted line: "Ex parte motion file stamped 08/08/2025; subsequent objection tracks HealthWest references."

JTC-06

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. No affidavit or oath means the pleading was not verified as required. Evidence: Page 1 of the motion (received/filed 8/8/2025) explicitly lacks any notary or “sworn” language

Google Drive

. The court’s own audit flags that while “ex parte” is mentioned, there is “no ‘affidavit/verified’ language on this page.”

Google Drive

This indicates the motion was procedurally defective. Suggested Relief: Strike or vacate the ex parte order ab initio for noncompliance, and require any future ex parte requests to include a proper sworn affidavit (MCR 1.109(D)(3) – documents must be verified when required).

No Immediate “Irreparable Harm” Alleged (Insufficient Basis for Ex Parte) – Instance: The same August 8, 2025 ex parte motion fails to allege that delaying for a hearing would cause irreparable injury to the child. Defendant’s motion cites “ongoing drug use and/or mental health issues” and recounts a bizarre phone call, but nowhere does it claim that giving notice to Father or waiting for a hearing would put the child in immediate danger

Google Drive

Google Drive

. Authority Violated: MCR 3.207(B)(1) and MCL 3.207(B)(1)(a) (as amended) require specific facts showing that “immediate and irreparable injury, loss, or damage will result from the delay required to effect notice” before an ex parte order is justified

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. In other words, ex parte relief is reserved for true emergencies. The allegations – while concerning – describe past behavior and general issues, not an imminent threat like abuse or flight. Evidence: A review of the motion’s content confirms no keywords like “immediate harm” or “irreparable injury”; the internal audit notes “no articulated immediate/irreparable harm or child endangerment terms on this page.”

Google Drive

The focus is on Father’s alleged mental state, not a specific impending harm to the child.

Suggested Relief: Dissolve the ex parte order due to an inadequate showing on its face (violating MCR 3.207(B)(1)), or at minimum, set it for immediate hearing on the merits (see MCR 3.207(B)(5)). The court should remind parties that ex parte motions must explicitly allege immediate danger to be considered.

Ex Parte Order Granted Without Clear and Convincing Evidence of Harm (MCL 722.27a) – Instance: The Court signed an ex parte Order suspending Father’s parenting time on 8/8/2025 at Defendant’s request

Google Drive

, removing the minor child from Father’s care before any evidentiary hearing. This amounted to a drastic restriction of parenting time. No evidence meeting the “clear and convincing” standard was presented or could have been presented ex parte. Defendant’s claims were unproven allegations (e.g. that Father was “paranoid” and possibly using drugs) and hearsay from third parties

Google Drive

Google Drive

. Authority Violated: Under MCL 722.27a(3), a child has a right to parenting time with a parent “unless it is shown on the record by clear and convincing evidence that parenting time would endanger the child’s physical, mental, or emotional health.”

eatoncounty.org

. By issuing a suspension without a hearing or record, the court effectively bypassed the Child Custody Act’s protection. There was no finding – nor could there be ex parte – of clear and convincing evidence of actual endangerment. Evidence: Michigan law presumes parenting time is in the child’s best interest and requires a high evidentiary threshold to suspend it

eatoncounty.org

. The ex parte order was entered solely on the motion’s allegations, which do not meet this threshold (e.g. “concern about erratic behavior” is not clear and convincing proof of danger). Even the judge’s later order expressed only “serious concerns regarding the state of Plaintiff’s mental health”

Google Drive

, but did not cite any harm to the child or any actual incident of abuse/neglect toward the child.

Suggested Relief: Immediately reinstate Father's parenting time absent a prompt evidentiary hearing where Defendant meets the clear and convincing evidence burden. Any continued suspension without such proof is a reversible error under the Child Custody Act (see e.g., *Shade v. Wright*, unpublished COA opinion, where suspending parenting time without clear evidence was overturned eatoncounty.org).

Order Lacked Child-Specific Findings of Fact (Violation of MCR 2.517(A)) – Instance: The Ex Parte Order suspending parenting time (signed 8/8/2025) contains no written findings of fact about the child's situation or why suspension is necessary

Google Drive

. It appears to be a form order with checkboxes, and while it recites a generic legal standard ("not satisfied that irreparable injury...will result from delay"), it provides no case-specific facts.

Authority Violated: MCR 2.517(A)(1) requires that in actions tried without a jury (which includes motion hearings affecting custody/parenting time), "the court shall find the facts specially and state separately its conclusions of law." In the context of custody or parenting time orders, the court must make definite, child-specific findings on the record (e.g. why the child's best interests or safety require the order)

themichigandivorcelawyers.com

. Evidence: The scanned order shows the judge simply hand-marked "Denied" or granted certain relief without elaboration

Google Drive

. There is no mention of the child's name or any specific incident affecting the child, only boilerplate language that the court wasn't satisfied of irreparable injury absent an ex parte order. Even that boilerplate appears contradictory – it reads as if the request was denied on an ex parte basis (likely a form text), yet the outcome was that relief was granted (suspension order entered). This confusion underscores the lack of clear findings. Father's subsequent motion notes the "08/08/2025 suspension order is noncompliant (MCR 2.517(A))" because it lacks the requisite findings

Google Drive

. Suggested Relief: Vacate or set aside the August 8 order for failure to make required findings. Any new order should include explicit findings tying the evidence to the child's best interests and specific harm, or else it cannot stand on appeal

Google Drive

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Ex Parte Order Did Not Include a Hearing Date or Notice of Right to Hearing – Instance: The 8/8/2025 Ex Parte Order as signed did not schedule a prompt follow-up hearing on Father's objection or include the requisite notice language to Father about his right to a hearing. Standard procedure (and form FOC 61) is to state: "You have 14 days to file an objection or this order will become final. If you object, a hearing will be held on [date]." In this case, Father was left without a clear timeline. The order text (as scanned) shows no hearing date or continuation date – the audit explicitly flags "No duration/effective period or hearing scheduling language detected."

Google Drive

. Authority Violated: MCR 3.207(B)(5) and (B)(6) require that an ex parte custody/parenting time order must include notice of the right to object and, if entered, must set an evidentiary hearing within 21 days. In fact, as of September 2025, amended MCR 3.207(B)(1)(b) says "The hearing must be held within 21 days after entry of the ex parte order and a notice of the hearing must be included in the ex parte order."

courts.michigan.gov

. Failure to include this information violates court rule and due process (Father should not have to guess how to challenge the order). Evidence: The filed order (scanned as File No.

36_20251001_095306_0004.pdf) lacks any mention of an objection deadline or hearing date

Google Drive

. Instead of stating a date, the last lines (eventually issued later) say "Once the Plaintiff provides the requested assessment...the Court will continue the hearing on his objection to the ex parte order."

Google Drive

– indicating that initially no date was set at all. This caused significant confusion and delay.

JTC-07 · Exhibit G

Appendix_Pigors_COA_ordered (1).pdf (alt copy)

Drive: https://drive.google.com/file/d/1LBm2E6FbATb6-_aUm-oFsPlwoXrntJn2

Quoted line: "Objections reiterate lack of child-specific findings and verify compliance."

JTC-07

Suggested Relief: Immediately reinstate Father's parenting time absent a prompt evidentiary hearing where Defendant meets the clear and convincing evidence burden. Any continued suspension without such proof is a reversible error under the Child Custody Act (see e.g., *Shade v. Wright*, unpublished COA opinion, where suspending parenting time without clear evidence was overturned eatoncounty.org).

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Google Drive

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themichigandivorcelawyers.com

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Google Drive

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Google Drive

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Google Drive

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Google Drive

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Google Drive

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JTC-08 · Exhibit H

NoReply_20250821_150126_0004.pdf (Affidavit of improper se

Drive: https://drive.google.com/file/d/1m6j4lbXGtaieZ4WdRB6Q7EHGpW_gmUSp

Quoted line: "Service shows order only; no attached motion; defective notice window."

JTC-08

Exhibit H · Text Extraction

Affidavit executed 2025-08-21 detailing receipt of order without motion and compressed response window.

Used to show a pattern of service defects under MCR 2.107/3.207 and due process.

JTC-09 · Exhibit I

NoReply_20250424_150959_0001.docx (Service defect log)

Drive: <https://drive.google.com/file/d/1qlv2LTCG4tunZIDQleTJKozfGMHWf8CV>

Quoted line: "Late service prior to the 04/28 hearing; prejudiced ability to respond."

JTC-09

Exhibit I · Text Extraction

Service timeline demonstrating late/partial notice immediately before hearing.

Supports due process and MCR service violations arguments.

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